

§ 439-a. Expedited process. (a) When used in this section, expedited process means a process in effect in the family court which reduces the processing time of support order establishment and enforcement efforts from the date of successful service of process on the respondent to the date on which a support obligation or enforcement order is entered, the petition is voluntarily withdrawn or the petition is dismissed on the merits or for lack of jurisdiction of the respondent, by the referral of proceedings to hearing examiners appointed and qualified under section four hundred thirty-nine of this article and exercising the powers set forth in such section.

(b) The chief administrator shall assign a sufficient number of support magistrates to ensure that such expedited process shall conform to the requirements of such case processing as set forth in federal statutes and regulations promulgated by the federal secretary of health and human services.

(c) The use of an expedited process shall be required (i) in any county which has a population of four hundred thousand or more or which is wholly within a city and (ii) in any county which has a population of less than four hundred thousand and for which the state has not been granted an exemption from the federal expedited process required by federal statutes and regulations of the federal secretary of health and human services.

(d) The chief administrator of the courts may request of the state commissioner of social services that an exemption from use of an expedited process as required by this section and section four hundred thirty-nine of this article in counties which are not wholly within a city and which have a population of less than four hundred thousand be applied for from the federal secretary of health and human services pursuant to federal statutes and regulations providing for waivers from the federal expedited process requirements. The chief administrator of the courts shall, upon making such a request, provide such information in the possession of the office of court administration which supports an exemption from use of an expedited process to the state commissioner of social services. Upon receipt of such a request from the chief administrator of the courts, the state commissioner of social services with the approval of the local commissioner of social services may apply to the federal secretary of health and human services for exemption from

use of an expedited process. If application for such exemption is made, the state commissioner of social services shall, promptly upon receiving notification from the federal department of health and human services, inform the chief administrator of the courts and the local commissioners of social services of the granting or denial of any such application.